

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SAI KIT LEE,
Petitioner

VS.

SHI FEN QIN,
Respondent

) Case Number: FDI-25-801373

) Hearing Date: May 19, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

PROVE-UP HEARING RE: REQUEST FOR ENTRY OF TRUE DEFAULT JUDGMENT

TENTATIVE RULING

The parties are ordered to appear in Department 404 in person or via Zoom video. Petitioner shall be prepared to explain to the Court why the Petition and Summons were mailed to the Santa Cruz Ave. address (when Petitioner previously indicated Respondent no longer lives there) and whether Respondent did indeed receive those papers and sign the Notice and Acknowledgment of Receipt.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above

A. Procedural History

- 1) On 5/9/2025, Petitioner Sai Kit Lee filed a Petition for Dissolution. Petitioner states the parties married on 1/4/2022 and separated on 1/1/2024, for a marriage of 2 years. Petitioner also states the parties have no minor children.
- 2) On 5/16/2025, Petitioner filed an Application for Order for Posting asking that Petitioner be permitted to serve Respondent Shi Fen Qin with the Summons and Petition by posting. Petitioner

1 stated Respondent had vacated their shared residence located on Santa Cruz Ave. in San
2 Francisco on 11/1/2024 and Petitioner had not been able to locate Respondent since then.

- 3) On 6/25/2025, Judge Chan denied Petitioner's Request for an Order for Posting.
- 4) On 7/28/2025, Petitioner filed a Proof of Service of Summons indicating that the Petition,
5 Summons, blank Response, and Petitioner's Income and Expense Declaration had been mailed to
6 the address of the parties' previously shared residence on Santa Cruz Ave. in San Francisco
7 (which is also Petitioner current address) on 7/11/2025. Petitioner attached a Notice and
8 Acknowledgment of Receipt to the Proof of Service of Summons purportedly signed by
9 Respondent on 7/19/2025.
- 5) On 1/6/2026, Petitioner submitted a True Default Judgment for the Court's review.
- 6) On 3/12/2026, the Court issued an Order Setting Prove-Up Hearing Re: Request for Entry of True
12 Default Judgment ordering Petitioner to appear on 5/19/2026 at 9:00 AM to explain to the Court
13 why the Petition and Summons were mailed to the Santa Cruz Ave. address (when Petitioner
14 previously indicated Respondent no longer lives there) and whether Respondent did indeed
15 receive those papers and sign the Notice and Acknowledgment of Receipt.
- 7) The Court notes that Respondent has filed no pleadings in this matter to date.

17 **B. Findings and Order**

- 18 **1) The parties are ordered to appear. Petitioner shall be prepared to explain to the Court why**
19 **the Petition and Summons were mailed to the Santa Cruz Ave. address (when Petitioner**
20 **previously indicated Respondent no longer lives there) and whether Respondent did indeed**
21 **receive those papers and sign the Notice and Acknowledgment of Receipt.**
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